

Part 3—Details of property that is to be sold, let, purchased or managed

Please provide details of the property or land as appropriate.

Note: Annexures detailing multiple properties may be attached if required.

Description

Address 11 Testa Street

Suburb CABOOLTURE State Q L D Postcode 4 5 1 0

Lot Plan.....

Title reference

Part 4—Appointment of property agent

Section 1

Performance of service

Annexures detailing the performance of service may be attached if required.

The client appoints the agent to perform the following service/s:

- ☐ Sale ☐ Purchase ☐ Letting / collection of rent / management
- ☐ Auction Auction date / / (must be completed)
- ☐ Other (please specify)

Section 2

Term of appointment

Sole and exclusive appointments: for sales of one or two residential properties, the term is negotiable and agent can be appointed or reappointed up to a maximum of 90 days per term. There are no limitations on the length of an appointment for anything other than a residential property sale.

- ☐ Single appointment for a particular service or services
- Start / / End / /
- ☐ Continuing appointment for a service or a number of services over a period
- Start / /

Section 3

Price

State the price for which the property is to be sold or let.

Note: Bait advertising is an offence under the Australian Consumer Law.

- ☐ Reserve ☐ List ☐ Letting
- \$.....
- For auctions: If a reserve price is unknown at the time of appointment, it can be advised *in writing* at a later date.
 - For residential property auctions and residential properties to be marketed without a price: If the client agrees to marketing via an *electronic listing provider*, the client agrees for the agent to disclose to the *electronic listing provider* a price or price range of
- \$..... to establish a search criteria.

Section 4

Instructions/conditions

The client may list any condition, limitation or restriction on the performance of the service.

Note: Annexures detailing instructions/conditions may be attached if required.

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Part 5—Termination of appointment

Residential sales of 1 or 2 properties only	Open listing: You may terminate in writing at any time. Sole or exclusive: The client and agent can agree in writing to end the appointment early. For appointments of 60 days or more, either party can end the appointment by giving 30 days written notice, but the appointment must run for at least 60 days unless both parties agree to an earlier end date.
Open listing	You may terminate an open listing for residential property sales at any time.
Other fixed term appointments (excluding residential property sales)	The parties may agree to a fixed term appointment of their choice. This term may be ended earlier by mutual agreement.
Continuing appointments (for example: letting, collection of rents etc)	You may terminate in writing with 30 days notice, or less if both parties agree.

Part 6—Property sales: open listing, sole agency or exclusive agency

To the client

You may appoint an agent to sell a property on the basis of an open listing, or a sole agency, or exclusive agency.

The following information explains the circumstances under which you will, and won't, have to pay a commission to the agent if the property is sold during their term of appointment.

☐ OPEN LISTING

- You appoint the agent to sell the property but you retain a right to appoint other agents on similar terms, without penalty or extra commission.
- No end date required.
- Appointment can be ended by either you or the agent at any time by giving written notice.

When you must pay the agent

- The agent is entitled to the agreed commission if the agent is the effective cause of sale.

When you don't have to pay the agent

- If the client sells the property privately and the agent is not the effective cause of sale i.e.: purchaser did not contact the agent, did not attend open house inspections etc.

☐ SOLE AGENCY

When you must pay the agent

- If you appoint a new agent during an existing agent's sole agreement term and the property is sold during that term, you may have to pay:
 - A commission to each agent (two commissions)
 - Damages for breach of contract arising under the existing agent's appointment

When you don't have to pay the agent

- If the client sells the property privately and the agent is not the effective cause of sale i.e.: purchaser did not contact the agent, did not attend open house inspections etc.

☐ EXCLUSIVE AGENCY

When you must pay the agent

- The client will pay the appointed agent whether this agent, any other agent, or person (including the client themselves) sells the property during the term of the appointment.
- If the client sells the property, the exclusive appointment expires and if the agent was the effective cause of sale (introduced the buyer to the property) the agent may be entitled to commission.

At the end of the sole or exclusive agency, the parties ☐ Agree ☐ Do not agree
that the appointment will continue as an open listing. (Please tick whichever is relevant.)

The Client acknowledges and accepts that the following notice is provided in accordance with the Agent's obligations under section 103 of the *Property Occupations Act 2014* (QLD):

(1) The agent has discussed with the client:

- a) whether the appointment of agent is to be for a sole agency or exclusive agency; and
- b) the proposed term of the appointment; and
- c) the consequences for the client if the property is sold by someone other than the agent during the term of the appointment.

Part 6—Property sales: open listing, sole agency or exclusive agency continued

Acknowledgement for sole and exclusive agency

I/we acknowledge the appointed agent has provided me/us with information about sole and exclusive agency appointments.

Client Mr seller seller

Date

D	D

 /

M	M

 /

Y	Y	Y	Y

Agent kevin licensee agent agency

Date

D	D

 /

M	M

 /

Y	Y	Y	Y

Part 7—Commission

To the client

The commission is negotiable. It must be written as a percentage or dollar amount.

Make sure you understand when commission is payable. If you choose 'Other' and the contract does not settle, the agent may still seek commission.

To the agent

You should ensure that commission is clearly expressed and the client fully understands the likely amount and when it is payable. Refer to section 104 and 105 of the *Property Occupations Act 2014*.

The client and the agent agree that the commission **including GST payable** for the service to be performed by the agent is:

.....
.....
.....

When commission is payable

☐ For sales, including auctions, commission is payable if a contract is entered into and settlement of the contract occurs.

☐ Other
(for specific other circumstances in which commission is payable see annexure).

For all other types of appointments:

.....
.....

This area has been intentionally left blank.

Part 8—Authorisation to incur fees, charges and expenses

The client authorises the agent to incur the following expenses in relation to the performance of the service/s. Annexures may be attached if required.

Section 1 Advertising/marketing

To the client

Your agent may either complete this section or attach annexures of marketing/advertising activities. In either case, the *authorised amount* must be written here.

Authorised amount \$

When payable / /
D D M M Y Y Y Y

Section 2 Repairs and maintenance (if applicable)

Residential Sales

The maximum value of repairs and maintenance to be paid by the agent without prior approval by the client is \$

Property Management

Routine Repairs

The maximum value of repairs and maintenance to be paid by the agent without prior approval by the client is \$

Emergency Repairs (S214 of the *Residential Tenancies and Rooming Accommodation Act 2008*)

For residential rental properties, the value for Emergency Repairs is 4 weeks rent per property (s219A of the *Residential Tenancies and Rooming Accommodation Act 2008*).

Section 3 Other

Description of fees and charges.

The agent may either complete this section or attach annexures.

Description

Amount

When payable

.....		
.....		
.....		
.....		

Section 4 Agent's rebate, discount, commission or benefit incurred in the provision of or performance of the service

Service

Source

Estimated amount

.....		
.....		
.....		
.....		

This area has been intentionally left blank.

Part 9—Signatures

WARNING: THE CLIENT IS ADVISED TO SEEK INDEPENDENT LEGAL ADVICE BEFORE SIGNING THIS FORM.

This form enables the client to appoint, or reappoint, a property agent, resident letting agent or property auctioneer (the ‘agent’) for the sale, letting/management, collection of rent, auction or purchase of real property. This form must be completed and given to the client before the agent performs any service for the client. Failure to do so may result in a penalty and loss of commission for the agent. If you are unclear about any aspect of this form, or the fees you will be charged, do not sign it. Seek legal advice. If you need more information about this form including what an agent needs to disclose, you can visit the Office of Fair Trading website at www.qld.gov.au/fairtrading or phone on **13 QGOV** (13 74 68).

Client 1	Full name <u>Mr seller seller</u> Signature <table><tr><td>☐</td><td>☐</td><td>/</td><td>☐</td><td>☐</td><td>/</td><td>☐</td><td>☐</td><td>☐</td><td>☐</td></tr><tr><td>D</td><td>D</td><td></td><td>M</td><td>M</td><td></td><td>Y</td><td>Y</td><td>Y</td><td>Y</td></tr></table>	☐	☐	/	☐	☐	/	☐	☐	☐	☐	D	D		M	M		Y	Y	Y	Y
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Agent A registered real estate salesperson working for an agency or an authorised representative of a corporate entity, in accordance with the <i>Corporations Act 2001</i> (Cth) can sign this form on behalf of the licensed agent.	Full name <u>kevin licensee agent agency</u> Signature <table><tr><td>☐</td><td>☐</td><td>/</td><td>☐</td><td>☐</td><td>/</td><td>☐</td><td>☐</td><td>☐</td><td>☐</td></tr><tr><td>D</td><td>D</td><td></td><td>M</td><td>M</td><td></td><td>Y</td><td>Y</td><td>Y</td><td>Y</td></tr></table>	☐	☐	/	☐	☐	/	☐	☐	☐	☐	D	D		M	M		Y	Y	Y	Y
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Schedules and attachments List any attachments.																					

Part 10—Reappointment

Use this section to reappoint your agent. A new appointment form is required if any of the terms or conditions are to change. Your agent can only be reappointed within 14 days before the contract ends—not before. Limitations apply on reappointments for sole or exclusive agency appointments for residential property sales.	I/we (the client) reappoint																				
	 (the agent) to <table><tr><td>☐</td><td>☐</td><td>/</td><td>☐</td><td>☐</td><td>/</td><td>☐</td><td>☐</td><td>☐</td><td>☐</td></tr><tr><td>D</td><td>D</td><td></td><td>M</td><td>M</td><td></td><td>Y</td><td>Y</td><td>Y</td><td>Y</td></tr></table>	☐	☐	/	☐	☐	/	☐	☐	☐	☐	D	D		M	M		Y	Y	Y	Y
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Client's name <u>Mr seller seller</u>																					
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This is the end of the approved form. Please note, any annexures/schedules form part of the appointment contract.

Example Terms and Conditions for Appointment of Real Estate Agent (Residential Sales)

Note: This is an example document inspired by standard REIQ-style terms and conditions for use with the Queensland Property Occupations Form 6 (Appointment of Property Agent) for a residential property sale. It is provided for illustrative purposes only and is not legal advice. Always consult a qualified professional or the REIQ for the latest official versions, as laws and standards may change. This example is based on publicly available samples and typical clauses.

ANNEXURE TO PO FORM 6

REIQ APPOINTMENT OF REAL ESTATE AGENT (RESIDENTIAL SALES) ESSENTIAL TERMS AND CONDITIONS

These Essential Terms and Conditions form part of the Appointment of Property Agent (PO Form 6) between the Client and the Agent.

1. DEFINITIONS

- 1.1 “Act” means the Property Occupations Act 2014 (Qld).
- 1.2 “Agent” means the party described in Part 2 of the Appointment of Property Agent.
- 1.3 “Appointment of Property Agent” means the Queensland Government Property Occupations Form 6 - Appointment and reappointment of a property agent, resident letting agent or property auctioneer. These terms and conditions and the Schedule are annexed to the Appointment of Property Agent.
- 1.4 “Client” means the party described in Part 1 of the Appointment of Property Agent.
- 1.5 “Commission” means the commission stated in Part 7 of the Appointment of Property Agent.
- 1.6 “Conjunction Sale” means a sale conducted in conjunction with other property agents.
- 1.7 “Electronic Signature” means an electronic method of signing that identifies the person and indicates their intention to sign.
- 1.8 “Property” means the property described in Part 3 of the Appointment of Property Agent.
- 1.9 “Property Description Details” means the particulars listed in the Property Description Details annexed to the Schedule.
- 1.10 “REIQ” means The Real Estate Institute of Queensland.
- 1.11 “Schedule” means the Residential Sales Schedule forming part of this Agreement.
- 1.12 “Term” means the term specified in Part 4, Section 2 of the Appointment of Property Agent.

2. WHAT MAKES UP THIS AGREEMENT

This Agreement comprises the following parts:

- 2.1 Appointment of Property Agent;
- 2.2 Schedule;

2.3 Essential Terms and Conditions;

2.4 Any additional annexures.

3. CLIENT APPOINTS AGENT

For the Commission and other fees payable by the Client, the Agent agrees to sell the Property for the Client in accordance with this Agreement.

4. PRICE

The Client instructs the Agent that the Price at which the Agent must offer to sell the Property will be the Price stated in Part 4, Section 3 of the Appointment of Property Agent, or any variation to the Price stated in Part 4, Section 3 of the Appointment of Property Agent as instructed in writing at a later date by the Client.

5. ENTITLEMENT TO COMMISSION

5.1 The Client agrees to pay the Agent Commission as specified in Part 7 of the Appointment of Property Agent if a Contract of Sale of the Property is entered into with a Buyer, whether within the Term or after the Term, where the Relevant Person is the effective cause of the sale within the Term, provided that:

5.1.1 the Contract of Sale of the Property is completed; or

5.1.2 the Client defaults under the Contract of Sale and that Contract is terminated by reason of or following that default; or

5.1.3 the Contract of Sale is not completed and the whole or part of the deposit paid is liable to be forfeited; or

5.1.4 the Contract of Sale is terminated by mutual agreement of the Client and the Buyer.

5.2 For the purposes of Clause 5.1 a Relevant Person is, where the Appointment of Property Agent is for:

5.2.1 an Exclusive Agency, any person (including the Client); or

5.2.2 a Sole Agency, any person other than the Client; or

5.2.3 an Open Listing, the Agent only.

6. AUTHORITY TO PAY COMMISSION

6.1 The Client:

(a) authorises the Agent, and

(b) authorises and directs the deposit holder or any other person to whom any deposit is paid under a Contract of Sale, to pay to the Agent any Commission to which the Agent is entitled immediately upon:

6.1.1 production of the Agreement or a copy of the Agreement; and

6.1.2 the entitlement to Commission arising.

6.2 The Client agrees that the Agent's receipt for the payment of Commission under Clause 6.1 completely discharges the deposit holder from any duty to account to the Client for the Commission paid to the Agent.

7. COMMUNICATION OF EXPRESSIONS OF INTEREST

7.1 Unless otherwise agreed in writing between the Client and the Agent, the Client:

(a) only requires the Agent to communicate to the Client:

(i) all written offers about the sale; and

(ii) only those expressions of interest which the Agent determines in its discretion are serious expressions of interest; and

(b) does not require the Agent to communicate to the Client any verbal offers or expressions of interest.

7.2 The Client agrees that the Agent is not required to submit to the Client any offers or expressions of interest which are less than the Price.

8. MARKETING AND EXPENSES

8.1 The Client authorises the Agent to market and advertise the Property for sale in accordance with the marketing budget and plan specified in the Schedule or as otherwise agreed in writing.

8.2 The Client agrees to pay or reimburse the Agent for all authorised marketing and advertising expenses as set out in Part 8 of the Appointment of Property Agent and the Schedule, whether or not the Property is sold.

8.3 Payment of expenses is due upon demand by the Agent.

9. AGENT'S AUTHORITY

9.1 The Client authorises the Agent to:

9.1.1 allow prospective buyers to inspect the Property at reasonable times;

9.1.2 disclose information about the Property to prospective buyers as required by law or to facilitate the sale;

9.1.3 engage sub-agents or conjunction agents if necessary for a Conjunction Sale;

9.1.4 sign exchange documents on behalf of the Client if specifically authorised in writing.

9.2 The Agent must act in accordance with the Client's instructions and the Act.

10. DISCLOSURE OF BENEFITS

10.1 The Agent must disclose any benefits received from third parties in connection with the sale, as required by the Act.

10.2 Any rebates or commissions from referrals (e.g., to conveyancers) will be disclosed in the Schedule.

11. INDEMNITY AND LIABILITY

11.1 The Client indemnifies the Agent against all losses, claims, and expenses arising from the Agent's performance of services under this Agreement, except where caused by the Agent's negligence or breach.

11.2 The Agent is not liable for any loss or damage to the Property unless caused by the Agent's negligence.

12. PRIVACY AND CONFIDENTIALITY

12.1 The Agent will collect, use, and disclose personal information in accordance with the Privacy Act 1988 (Cth) and the Agent's privacy policy.

12.2 The Client consents to the Agent using personal information for marketing and sale purposes.

13. GST

13.1 All amounts payable under this Agreement are inclusive of GST unless otherwise stated.

13.2 If GST is payable, the Client must pay the GST amount in addition to the stated amounts.

14. TERMINATION

14.1 This Agreement may be terminated in accordance with Part 5 of the Appointment of Property Agent.

14.2 Upon termination, the Client remains liable for any Commission or expenses incurred during the Term if a sale occurs as per Clause 5.

15. GOVERNING LAW

15.1 This Agreement is governed by the laws of Queensland.

15.2 Any disputes will be resolved in the courts of Queensland.

16. ENTIRE AGREEMENT

16.1 This Agreement constitutes the entire understanding between the parties and supersedes all prior agreements.

Signed by the Client: _____ **Date:** _____

Signed by the Agent: _____ **Date:** _____

This example includes common clauses found in similar REIQ documents. For a real transaction, use the official REIQ forms available to members or consult a legal expert.

Appointment of Real Estate Agent Residential Sales

Schedule

This Schedule forms an integral part of the Agency Appointment Agreement (the "Agreement") entered into between the Agent and the Seller, for the purpose of disclosing certain information to the other party that are supplementary to those terms set forth in the Agreement.

A. Conflict of Duty or Interest Regulation 18

- ☐ The Agent discloses that, in accepting this appointment, that the Agent's duty or interests do not conflict with the Client's interests.

B. Verification of Ownership Regulation 19

- ☐ The Client represents and warrants that they are the registered owner of the Property listed in this Appointment.
- ☐ The Agent confirms that they have verified the identity of the owner, ensuring that both the owner's name and the legal description of the Property listed in this Appointment corresponds with the information recorded on the title's registry.

C. Verification of Facts Material to the Sale of Property Regulation 20

- ☐ The Client represents and warrants that to the best of their knowledge, they have disclosed to the Agent all facts material to the Sale of the Property.

☐	Utilities and Services: Availability and condition of essential services, including water, electricity, sewage, and telecommunications.
☐	Occupancy and Tenancy: Current occupancy status and details of any existing tenancy agreements that will remain in effect post-sale.

- ☐ The Client represents and warrants that they will retain the services of the Solicitor named below to investigate and compile a list of facts material to the sale of the Property and hereby directs their solicitor to disclose those facts to the Agent, in writing, prior to the listing going live on the market. The Client authorises the Agent to invite the named solicitor below contact the named solicitor below for the purpose of this appointment and the preparation of the Contract.

Solicitor Details: (Firm Name)

D. Prior appointment of another property agent Regulation 21

- ☐ The Client confirms that it has not retained an Agent, prior to this appointment that is currently in force, to sell the Property.

WARNING: If the Client appoints our Agency to perform the service, the Client acknowledges that they may be liable to pay

Appointment of Real Estate Agent Residential Sales

- (a) a commission under each appointment, and
- (b) damages for breach of contract under the existing Agent's appointment.

E. Agent to act in accordance with Clients instructions Regulation 22

- ☐ The Client represents and warrants that they have reviewed the contents of this Appointment and acknowledges that its contents correctly reflect the entirety of the instructions provided to the Agent.
- ☐ The Client commits to providing written instructions to the Agent in the event of any changes at any point throughout the duration of the Appointment.

F. Representation of Price of Property Section 215

Has the Client requested pricing information from the agent about the potential sale price of the residential property, regardless of whether it will be sold at auction?

- ☐ No - the Client understands that they will not get any advice from the Agent about the market value of the Property unless they later give the Agent written instructions to do so.
- ☐ Yes (Choose one)
 - ☐ The Client has asked the Agent for a comparative market analysis (CMA) and the agent has decided NOT to provide one to the Client; or
 - ☐ The Client has received a copy of a comparative market analysis (CMA) or a written explanation detailing how the real estate agent determined the property's market value (Market Information).

G. Not to disclose Reserve or other Price Section 216

If the Property is sold by auction or marketed without a price, the Agent is prohibited from providing a price guide or CMA to a Buyer.

If the Property is being marketed with a price, the Client:

- ☐ authorises the Agent to provide the Buyer with the Market Information; or
- ☐ does not authorise the Agent to provide the Buyer with the Market Information.

H. Consent to Privacy Notice

- ☐ The Client acknowledges that they have, if needed, received and completed a Privacy Notice and Consent from the Agent, either attached to this Appointment or available on the Agent's website.

test.com +61285993444

The Client fully understands that their personal information collected in the Property Occupations Form 6, this Schedule, the Essential Terms and Conditions, and any other attachments, will be used according to this Privacy Notice and Consent.

Appointment of Real Estate Agent Residential Sales

I. Insurance

Cl.13

The Client understands that they should have adequate insurance during the time of this Appointment to cover any claims that may arise under clause 13 of the Essential Terms and Conditions.

J. Signatures

The Client understands and has reviewed the contents of this appointment and warrants that the information in this Appointment correctly reflects the client's instructions and disclosures to the agent. This Schedule to the Form 6 Agency Appointment is accepted by both parties. Each party confirms that the information provided is correct.

Signed on the date written below:

AGENT: _____

Date: _____

Name: kevin licensee agent agency

SELLER: _____

Date: _____

Name: Mr seller seller

SELLER: _____

Date: _____

Name: _____